

Amendment No. 1 to HB0005

Farmer
Signature of Sponsor

AMEND Senate Bill No. 419

House Bill No. 5*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-39-102(h), is amended by adding the following as a new subdivision:

(5)

(A) If the defendant violated § 63-6-1103(b) by sending an abortion-inducing drug, as defined in § 63-6-1102, into this state to a patient via courier, delivery, or mail service. Notwithstanding another law to the contrary, any such defendant is strictly liable to the patient, or other wrongful death beneficiary under § 20-5-106(a), in the statutory amount of five million dollars (\$5,000,000) in compensatory damages for the wrongful death of a person, as defined in § 20-5-106(d), caused by the abortion-inducing drug.

(B) This subdivision (h)(5) does not apply to:

(i) A pharmacist, as defined in § 63-10-204;

(ii) A physician, as defined in § 63-6-1102;

(iii) A motor carrier or freight forwarder, as defined in 49 U.S.C. § 13102; or

(iv) An air carrier, as defined in 49 U.S.C. § 40102.

SECTION 2. Tennessee Code Annotated, Section 29-39-102(m), is amended by deleting the subsection and substituting:

(m) Except as provided in subdivision (h)(5), this chapter does not create or enhance any claim, right of action, civil liability, economic damage, or noneconomic damage under the law in existence prior to July 1, 2025.

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it, and applies to causes of action accruing on or after that date.